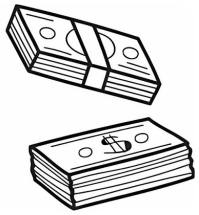
SPECIAL CASES



Section 8 or Permanent Supportive Housing (PSH)

- If you use either of these, your landlord must meet ""Housing Quality Standards"
- If your landlord refuses to make necessary repair, tell your social worker to request a special inspection

Month-to-Month leases

- When your initial lease ends, landlords often change to a month-to-month lease. If they do not provide a new lease for you to sign, the terms of the original lease stay the same
- Your landlord must provide 10-day notice before ending your month-to-month lease.

A better world is possible. Together we can make it real. This pamphlet is about rights you currently have, but we believe that **you deserve more**. We want social housing that is...



Redistributed from landlords



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Sustainable



Universal

WHO TO CONTACT IF YOU HAVE PROBLEMS WITH YOUR LANDLORD

East Baton Rouge Office of Social Services
4523 Plank Rd, Baton Rouge, LA 70805
225-358-4561
https://www.brla.gov/501/Office-of-Social-Services

Society of St. Vincent de Paul - Baton Rouge
220 St. Vincent de Paul Place, Baton Rouge, LA 70802
225-383-7837
https://www.svdpbr.net/request-assistance

Southeast Louisiana Legal Services
When you get an eviction notice, don't wait to go to court! Contact Southeast Louisiana Legal Services (SLLS) right away. You may be eligible for FREE legal help to prepare for hearings and avoid eviction.
CALL 225-448-0331

SLLS's Eviction Help Desk
Baton Rouge City Court
223 St Louis St., Baton Rouge
Outside Courtroom 309
Mon, Tues, Thurs, Fri: 9:00am-11:30am

The **Baton Rouge Democratic Socialists of America** have regular tenants rights town halls as part of our tenants rights campaign. You can see those and all of our events at brdsa.org/get-involved



brdsa.org

Created August 2025

TENANTS' RIGHTS IN BR

Created by the Baton Rouge Democratic Socialists of America



LANDLORDS ARE ORGANIZED, YOU SHOULD BE TOO

We define "tenant" as anyone who does not have control over their own housing. This includes people who rent, live in shelters, use housing vouchers, or have no place to live. We believe that tenants should defend their rights and fight together to gain more. **This pamphlet is meant to help you stay informed.**

ALL ABOUT EVICTIONS

The Eviction Process

Step 1 – Notice to Vacate
- If you have a written lease, your landlord may not be required to give you 5 days notice. Some leases require more notice.

Step 2- Rule for Possession
- Filed in court or with Justice of Peace
- The landlord cannot accept rent after filing

Step 3- Court Date
- Must be 3 days or more after approval of Rule for Possession.
- If the landlord wins, you'll usually be ordered to be out of property within 24-48 hours.

Step 4- Warrant for Possession
- A landlord must have this signed by a judge before they can remove your things from the property.

Types of Evictions

No cause evictions
- Your landlord does not need a reason to kick you out at the end of your lease term

For cause evictions
- Your landlord can evict during your lease term if you violate your lease or do not pay rent.



YES, YOU HAVE RIGHTS!

EVERYONE HAS A RIGHT TO...

Safe, healthy, and habitable housing that is "suitable for its intended use"
- This means the property must be okay for people to live in.
- Your landlord must make necessary repairs and keep the property livable





Peaceful possession
- Unless your lease says otherwise, your landlord cannot enter your home without *reasonable notice*

A notice and court hearing before eviction
- Your landlord cannot just throw your stuff on the curb. They *must* go through the courts to evict you.
- Make sure that you have seen a *Warrant for Possession* that is signed by a judge before letting your landlord remove your things from the property



Whatever is in your lease
- If you're keeping up your side of the lease (i.e. paying your rent) then your landlord must give you whatever they agreed to in your lease.



GENERAL THINGS TO REMEMBER

- You CANNOT withhold your rent, even if your landlord is not fixing things
- Communicate with your landlord in writing and keep records. Text messages are better than phone calls!
- You may be able to get out of your lease and move if your landlord violates your lease. Talk to a lawyer.
- You may be able to sue your landlord for damages.
- Read your lease! Or have someone read it with you.
- Take pictures of your apartment when you move in and before you move out.
- Keep a journal of all issues with your home and contact with your landlord. Include dates!
- Get receipts for your rent and security deposits (especially if you pay in cash!). Get a receipt when you turn in your key
- If your landlord does not make repairs within a reasonable length of time after you notify them, you might be able to make the repairs yourself and deduct from rent. .

